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| 7 | Patterson vs. Nayebaziz | <p><b>TENTATIVE RULING:</b></p> <p><b><u>Demurrer and Motion to Strike</u></b></p> <p>Defendants Cameray Pointe Homeowners Association, and Powerstone Property Management, Inc. demurs to and moves to strike portions of the Complaint filed by Plaintiffs Briant Patterson and Randi Carlson. For the following reasons, the demurer is OVERRULED and the motion to strike is DENIED.</p> <p><b>1. <u>Compliance with Code of Civil Procedure Section 430.41</u></b></p> <p>A party demurring or moving to strike a pleading is required to meet and confer “in person or by telephone” with the party that filed the pleading under Section 430.41. (Code Civ. Proc. § 430.41.) Here, MP’s counsel satisfied this requirement. (Biles Dec.)</p> <p><b>2. <u>General Principles</u></b></p> <p>A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.)</p> <p>On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.)</p> <p>A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail, which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare</p> |
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conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal.App.4th 989, 1006.)

### **3. Uncertainty**

Defendants' notice of demurrer contends that the Cross-Complaint is uncertain under Code Civ. Proc. § 430.10(f), but Defendant does not support this contention with any argument in the memorandum of points and authorities.

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. (*People v. Lim* (1941) 18 Cal. 2d 872, 883.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616.) Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (*Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908.) A party attacking a pleading on "uncertainty" grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (*Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).)

A demurrer for uncertainty will only be sustained where the complaint is so poorly pled that a defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 616.)

The court finds that the Complaint adequately pleads factual allegations against Defendants and is not so poorly pleaded that Defendants cannot discern which issues must be admitted or denied. Thus, the demurrer for uncertainty is overruled.

### **4. Failure to State Sufficient Facts**

As to moving Defendants, the Complaint asserts causes of action for 4) negligence and 7) unfair business practices.